

USE OF OTHER THAN FULL AND OPEN COMPETITION SAT

1. Identification of Agency and Contracting Activity

Requiring Agency is the USS Paul Hamilton and the Contracting Activity is Navy Supply System Fleet Logistics Center San Diego.

2. Nature and/or Description of the Action Being Approved

This action approves the procurement of 352 specialized, marine-grade mattresses for installation aboard the USS Paul Hamilton DDG-60. This is a new Firm-Fixed-Price contract action.

The primary purpose of this acquisition is to facilitate a comprehensive shipboard sleep study conducted by COMNAVSURFPAC. The study is designed to evaluate the impact of specific mattress technologies on service member sleep hygiene, cognitive performance, and overall physiological recovery within the unique constraints of a maritime operational environment. Data gathered from this procurement will inform future life-cycle replacements and shipboard habitability standards to optimize force readiness and personnel wellness.

3. Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value

CNSP Force Improvement Office (FIO) is executing a mattress modernization pilot as part of a Surface Force initiative directed by the Commander, Naval Surface Forces to improve Sailor sleep and mitigate fatigue. The pilot will install improved shipboard mattresses aboard USS PAUL HAMILTON (DDG 60),

Is the requested material or service represents the minimum requirements of the Government Estimated Dollar?

4. Statutory Authority Permitting Other Than Full and Open Competition

Additional Information Regarding Statutory Authority if Applicable

13.101 Competition.

(b) Contracting officers may solicit from a single source based on a determination and findings (see subpart 1.5) that only one source is reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

Procurement Request/Solicitation/Purchase Order Number: R218226071S101

Control Number:

I. Background

- 1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
- 2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE

Provide a description of the item or service required, to include its intended use, the name of the required source or brand name, the estimated cost/price, and the required delivery date/period of performance

Please reference item 3 above (Description of Supplies/Services to Meet the Agency's Needs Including Estimated Value)

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. ONLY ONE RESPONSIBLE SOURCE Yes

1. Restrictive Rights No

The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. Exclusive Licensing Agreements Yes

The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

Identify the OEM and explain the circumstances surrounding why the item or service is only available from the OEM.

OR

Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this document. NOTE: If there is more than one distributor/authorized technical representative for an OEM part, then Part B, BRAND NAME SOLE SOURCE, is applicable, and Part A, ONLY ONE RESPONSIBLE SOURCE, should be left blank

The CR SAFGUARD XL (Soft) Dual-Firmness mattress, manufactured exclusively by Chestnut Ridge Foam, Inc. is the only known product that meets the specific medical/ergonomic requirements of this mission while maintaining proprietary life-safety fire performance.

- **Proprietary Composition:** The mattress utilizes a specialized, inherently fire-resistant foam core. Unlike standard polyurethane foams treated with chemical flame retardants, CR SAFGUARD forms a stable carbon char when exposed to open flame, preventing the mattress from becoming a fuel source.
- **Unique Ergonomic Engineering:** The "Dual-Firmness XL (Soft)" variant utilizes a proprietary pin-cored structure. This specific engineering allows the mattress to provide necessary pressure relief (critical for infirmity, geriatric, or specialized operational use) without compromising the structural integrity or fire-resistance of the foam. Alternative manufacturers do not possess this specific dual-firmness engineering paired with this class of fire resistance.

These mattresses meet Navy Standards and are MIL-STD-1623E designed to form a stable char when exposed to flame, preventing the mattress from becoming a fuel source. Chestnut Ridge Foam, Inc. is the OEM and has no authorized distributors. To ensure the safety of personnel in high-risk, enclosed environments, and to meet the specific ergonomic requirements of the mission, this procurement must be restricted to the proprietary CR SAFGUARD XL (Soft) Dual-Firmness mattress. Substitutes introduce unacceptable life-safety vulnerabilities regarding smoke toxicity and fire propagation.